

Fourth COA (failure to pay wages): The simple allegation that Wally is an Executive Board member is not sufficient under Labor Code section 558.1.

Fifth COA (wrongful termination): The allegation that Wally is an Executive Board member is not sufficient.

Sixth COA (defamation): The allegation that Lally verbally attacked plaintiff's character, questioned her integrity, and disparaged her performance in front of colleagues is not sufficient to meet the requirements for pleading the five elements of defamation.

Seventh COA (Intentional Infliction of Emotional Distress): Plaintiff must allege "extreme and outrageous" conduct by Wally. The allegation that Lally "disparaged" and "humiliated" plaintiff is not sufficient.

Eleventh COA (whistleblower retaliation): Again, the simple allegation that Wally is a board member, without more, is not sufficient. (This cause of action did not even state who it is alleged against, so the Court infers that it is against all defendants.)

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

Lally's demurrer is sustained, with leave to amend.

10. 9:00 AM CASE NUMBER: C25-01590
CASE NAME: SOFIA LOPEZ VS. SALLY WALLY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND CHAMBER OF COMMERCE, INCORPORATED
TENTATIVE RULING:

Background

Plaintiff Sofia Lopez sues defendants Richmond Chamber of Commerce, Inc. (RCOC), Sarah Wally and Rich Doellstedt, asserting 14 different causes of action: (1) harassment in violation of FEHA; (2) Retaliation in violation of FEHA; (3) Failure to prevent workplace harassment; (4) failure to page

wages in violation of the FLSA; (6) defamation; (7) intentional infliction of emotional distress; (8) breach of implied covenant of good faith and fair dealing; (9) negligent hiring, supervision and retention; (10) constructive termination in violation of public policy; and (11) violation of California Labor Code §1102.5 (whistleblower retaliation). The complaint also initially was brought by James Lee, who also alleged causes of action (5) wrongful termination; (10) Constructive termination in violation of public policy; (12) failure to pay overtime wages; (13) failure to provide accurate wage statements; and (14) failure to pay wages upon termination. Mr. Lee has been dismissed from the action, thus those claims are no longer before the Court.

1 through 4, 7, and 10 are alleged against all defendants. Cause of action six is alleged against Wally only. Cause of action 11 does not identify who it is alleged against. Causes of action 8, and 9 are alleged against defendant RCOC only.

Defendant RCOC demurs to the First, Second, Third, Fifth (moot by dismissal), Seventh, Eighth, Tenth (moot by dismissal), and Eleventh causes of action of plaintiff's complaint, which are all of the causes of action alleged against it.

Counsel for RCOC made a good faith effort to meet and confer about the demurrer, and while the parties communicated to some degree, plaintiff's counsel never substantively responded to the issues raised. RCOC's counsel has complied with Code of Civil Procedure section 430.31 insofar as possible.

Discussion

First COA (harassment): The complaint alleges that Executive Board Member Wally, "routinely humiliated Ms. Lopez in the workplace verbally attacking her character, questioning her integrity, and disparaging her performance in front of colleagues." These allegations are not sufficiently specific to state a cause of action for workplace harassment.

Second COA (retaliation): RCOC contends that the elements of the FEHA violation required that plaintiff have engaged in protected activity, the employer subjected the employee to an adverse employment action, and a causal link exist between the two. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) The allegations are not sufficient.

Third COA (failure to prevent harassment): Having failed to allege harassment or retaliation in causes of action One and Two, there can be no cause of action for failing to prevent harassment or retaliation.

Seventh COA (Intentional Infliction of Emotional Distress): Plaintiff must allege "extreme and outrageous" conduct. Assuming for sake of discussion that Lally's conduct is attributable to RCOC, the allegation that Lally "disparaged" and "humiliated" plaintiff is not sufficient.

Eighth COA (breach of implied covenant of good faith and fair dealing): Plaintiff fails to identify any contract from which the implied covenant arises.

Ninth COA (Negligent hiring, supervision, and retention): Assuming for sake of discussion that an employee may sue their employer for the negligent supervision of another employee, the complaint

does not identify the employee in question (Wally is not alleged to be an employee) or identify any negligence by RCOC

Eleventh COA (whistleblower retaliation): Assuming that this cause of action applies to all defendants, the bare allegation that “plaintiff’s reported illegal conduct, and Defendants retaliated by taking adverse employment action” is not sufficient. The complaint must allege what illegal conduct she reported, and the action that was taken against her.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Lally requests that the demurrer be sustained without leave to amend. Plaintiff, who has filed no opposition, therefore does not provide any explanation as to how she can amend the complaint. Despite this, “it has long been the rule that a trial court’s denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The complaint does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted.

RCOC’s demurrer is sustained, with leave to amend.

11. 9:00 AM CASE NUMBER: C25-01794

CASE NAME: AFONSO INFANTE VS. BRIAN SKARBK

***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND QUASH SERVICE**

FILED BY: SKARBK, BRIAN

TENTATIVE RULING:

Defendants Brian Skarbek, White Rose Process Service, Inc., Luciano Caro and Martin Garcia’s motion to set aside the default is granted. Further, Defendants’ motion to quash service is granted.

Plaintiff Afonso Infante sued the Defendants for various torts related to Defendants work in an unlawful detainer case filed against Plaintiff. Plaintiff filed his complaint on June 25, 2025. Plaintiff filed proofs of service, showing that the Defendants were served by personal service on June 27, 2025 at 100 Saratoga Avenue, Suite 200. (See Proofs of Service, filed 7/28/25.) Plaintiff obtained a default against the Defendants on August 5, 2025. Defendants file this motion to set aside the default on November 12, 2025.

Defendants bring this motion under Code of Civil Procedure sections 418.10 and 473.5.

Section 473.5(a) allows a party to file a motion to set aside a default “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action”. The motion must